ARB 026/2025 (1) Onorata (2) Opall (3) Opalina v Onslowe

FEBRUARY 11, 2026 ARBITRATION - ORDERS

Claim No: ARB 026/2025

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

(1) ONORATA

(2) OPALL

(3) OPALINA

Claimants/Applicants

and

ONSLOWE

Defendant/Respondent

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Arbitration Claim filed on 9 July 2025 (the "Claim") seeking to set aside the final award dated 28 January 2025 rendered in DIAC Arbitration No. XX (the "Set Aside Application")

AND UPON the Order of H.E. Justice Shamlan Al Sawalehi dated 7 January 2026, dismissing the Claimants' Set Aside Application (the "Order")

AND UPON paragraph 2 of the Order for the Claimants to pay the Defendant's costs of the Set Aside Application

AND UPON the Defendant's Statement of Costs dated 12 January 2026

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 Interest on Judgments

IT IS HEREBY ORDERED THAT:

1. The Claimants shall pay the Defendant 80% of the costs claimed, assessed in the total amount of USD 30,160.37 being 80% of the claimed amount of USD 37,700.46 (the “Costs Award”).

2. The Claimants shall pay the Costs Award within 14 days from the date of this Order pursuant to RDC 38.40.

3. In the event that the Claimants fail to pay the Costs Award within 14 days of the date of this Order, interest shall accrue on the unpaid sum at the rate of 9% per annum from the date payment falls due until payment in full, in accordance with Practice Direction No. 4 of 2017.

Issued by:

Hayley Norton

Assistant Registrar

Date of issue: 11 February 2026

At: 11am

SCHEDULE OF REASONS

1. This cost application is brought by the Defendant seeking a costs award against the Claimants pursuant to paragraph 2 of the Order which dismissed the Claimants’ Set Aside Application.

2. For the reasons set out in that Order, I found that the Defendant was the successful party in the Set Aside Application and is therefore entitled to costs in principle pursuant to RDC 38.7.

3. In the Statement of Costs dated 12 January 2026, the Defendant seeks a total of USD 37,700.46 in legal costs. These costs comprise professional fees incurred by a team of fee earners.

4. In exercising my discretion under RDC 38.8 and 38.23, and applying the standard basis of assessment, I am satisfied that a reduction is warranted to ensure that the costs awarded are reasonable and proportionate in all circumstances.

5. I consider that an award of 80% of the total costs claimed appropriately reflects the Defendant’s efforts while addressing proportionality and the need to guard against any excess in time spent.

6. The Claimants shall therefore pay the Defendant the sum of USD 30,160.37, being 80% of the total costs claimed.